

HOUSE No. 3905

The Commonwealth of Massachusetts

PRESENTED BY:

Manny Cruz and Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the city of Salem to employ automated enforcement of speed limit violations in designated school zones within the city of Salem.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>1/22/2025</i>

HOUSE No. 3905

By Representative Cruz of Salem and Senator Lovely, a joint petition (accompanied by bill, House, No. 3905) of Manny Cruz (with the approval of the mayor and city council) that the city of Salem be authorized to employ automated enforcement of speed limit violations in designated school zones. Transportation. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the city of Salem to employ automated enforcement of speed limit violations in designated school zones within the city of Salem.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. As used in this chapter, the following words shall, unless the context clearly
2 requires otherwise, have the following meanings:-

3 "Automated Road Safety Camera System" shall mean an automated motor vehicle sensor
4 device installed which produces digital photographs and may record the speed of each motor
5 vehicle at the time it is operated in a manner that is in violation of traffic laws and regulations
6 where the automated road camera safety system is located.

7 "Camera Enforceable Violation" shall mean a violation of the traffic laws which may be
8 enforced by an automated road safety camera system, limited to exceeding the speed limit
9 pursuant to section 17 or section 18 of chapter 90 while travelling in a designated school zone.

10 "City" shall mean the City of Salem, Massachusetts.

“Designated School Zone” shall mean within 300 feet of the real property comprising a public or private accredited preschool, accredited Head Start facility, elementary, vocational or secondary school if the violation occurs between 5:00 a.m. and midnight, whether or not school is in session.

Section 2. (a) The City of Salem may employ an automated road safety camera system as a means of promoting traffic safety in a designated school zone, which may be fixed along any portion of any ways within a designated school zone its control, or within a designated school zone in the control of the commonwealth with written permission from the department of transportation and may impose a penalty on the owner of a motor vehicle for failure by the operator thereof to comply with traffic laws and regulations.

(b) The City may employ no more than two fixed automated road safety camera systems per designated school zone.

Section 3. (a) The maximum fine imposed for a violation issued pursuant to this chapter shall be twenty five dollars per violation. For violations issued pursuant to this chapter, except as provided in section 4, the owner or owners of a vehicle shall be liable for the fine, however, no owner of a vehicle shall be responsible for a violation issued pursuant to this chapter where the operator of the motor vehicle was issued a citation for the underlying violation in accordance with section 2 of chapter 90C of the General Laws. The city may send a written warning to the owner or owners in lieu of enforcement for the purpose of education.

(b) A certificate, or a facsimile thereof, based upon inspection of photographs and data produced by an automated road safety camera system, and sworn to or affirmed by the police

department or designee authorized to issue citations for violations of traffic laws and regulations, shall be prima facie evidence of the facts contained therein.

(c) A violation issued by the city shall not be made part of the operating record of the person upon whom such liability is imposed, nor shall such violation be considered a conviction of a moving violation of the motor vehicle laws for the purpose of determining a surcharge on a motor vehicle premium pursuant to section 113B of chapter 175 of the General Laws.

(d) The police department shall supervise and coordinate the administration of violations issued in conformance with this chapter. The police department shall have the authority to hire and designate such personnel as may be necessary or contract for such services to implement the provisions of this chapter.

(e) It shall be the duty of the police department or designee of a city to cause a notice of violation to the registered owner or owners of a motor vehicle identified in photographs produced by such device as evidence of a violation pursuant to this chapter. Such notice shall contain, but not be limited to, the following information: a copy of the aforementioned recorded images and other data showing the vehicle in the process of a camera enforceable violation; the registration number and state of issuance of the vehicle; the date, time and location of the violation; the specific camera enforceable violation charged; instructions for payment of the violation; instructions to contest the violation in writing; and instructions to obtain a hearing.

(f) In the case of a violation involving a motor vehicle registered under the laws of the Commonwealth, a notice of violation shall be mailed within 14 days of the violation to the address of the registered owner or owners as listed in the records of the registrar of motor vehicles. In the case of any motor vehicle registered under the laws of another state or country,

such notice of violation shall be mailed within 21 days of the violation to the address of the registered owner or owners as listed in the records of the official in such state or country having charge of the registration of such motor vehicle. If said address is unavailable, it shall be sufficient for the police department or designee to mail a notice of violation to the official in such state or country having charge of the registration of such motor vehicle.

(g) A notice of violation shall be sent by first class mail in accordance with subsection (f) and shall include an affidavit form approved by the police department for the purpose of complying with subsection (b). A manual or automatic record of mailing processed by or on behalf of the police department in the ordinary course of business shall be prima facie evidence thereof, and shall be admitted as evidence in any judicial or administrative proceeding, as to the facts contained therein. Unless an owner or owners pay the fine or contest responsibility within 60 days of the violation, the provisions of subsection (l) will apply.

(h) Any owner to whom a notice of violation has been issued shall not be liable for a violation under the provisions of this chapter if: the violation was necessary to allow the passage of an emergency vehicle; the violation was incurred while participating in a funeral procession; the

violation was incurred during a period of time in which the motor vehicle was reported to the police department of any state, city or town as having been stolen and had not been recovered prior to the time the violation occurred; the operator of the motor vehicle was operating the motor vehicle under a rental or lease agreement and the owner of the motor vehicle is a rental or leasing company and has complied with the provisions of section 4 of this chapter; the operator of the motor vehicle was issued a citation for the underlying violation in accordance with section

2 of chapter 90C of the General Laws; or, the violation was necessary to comply with any other law or regulation governing the operation of a motor vehicle.

(i) Any motor vehicle owner to whom a notice of violation has been issued pursuant to this chapter may admit responsibility for such violation and pay the fine provided therein.

Payment may be made personally or through a duly authorized agent, by appearing before the police department's designee during normal office hours, by mailing or online. Payment by mail shall be made by check, money order or credit card to the police department or city. Payment of the established fine and any applicable penalties shall operate as the final disposition of the violation. Payment by one motor vehicle owner shall operate as the final disposition of the violation as to all other motor vehicle owners of the same motor vehicle for the same violation.

(j) An owner may contest responsibility for a violation under this chapter in writing by mail or online. The owner shall provide the police department with a signed affidavit in a form approved by the police department, stating: the reason for disputing the violation; the full legal name and address of the owner of the motor vehicle; and the full legal name and address of the operator of the motor vehicle at the time the violation occurred. An owner may include signed statements from witnesses, which include the names and addresses of witnesses, supporting the owner's defense. Within 21 days of receipt, the police department or the hearing officer shall send the decision of the hearing officer, including the reasons for the outcome, by first class mail to the registered owner or owners. If the owner is found responsible for the violation, the owner shall pay the fine in the manner described in (i) within 14 days of the issuance of the decision or request further judicial review pursuant to section 14 of Chapter 30A of the General Laws.

(k) An owner may request a hearing to contest responsibility for a violation. A hearing request shall be made in writing by mail or online. Upon receipt of a hearing request, the police department shall schedule the matter before hearing officer. Said hearing officer may be an employee of the police department of the city or such other person or persons as the police department may designate. Written notice of the date, time and place of said hearing shall be sent by first class mail to each registered owner. The hearing shall be informal, the rules of evidence shall not apply, and the decision of the hearing officer shall be final subject to judicial review as outlined by section 14 of Chapter 30A of the General Laws. Within 21 days of the hearing, the police department or the hearing officer should send the decision of the hearing officer, including the reasons for the outcome, by first class mail to the registered owner or owners. If the owner is found responsible for the violation, the owner shall pay the fine in the manner described in (i) within 14 days of the issuance of the decision or request further judicial review pursuant to section 14 of Chapter 30A of the General Laws.

(l) If an owner to whom a notice of violation has been issued either fails to pay the fine in said notice in accordance with subsection (i), or is found responsible for the violation and does not pay the fine in accordance with subsection (j) or subsection (k), the police department shall notify the registrar of motor vehicles who shall place the matter on record. Upon receipt of the registrar of five or more of such notices, the registrar shall not issue or renew such owner's motor vehicle registration until after notification from the police department that all fines owed pursuant to this chapter have been paid. It shall be the duty of the police department to notify the registrar forthwith that such case has been so disposed; provided, however, that certified receipt of full and final payment from the police department shall also serve as legal notice to the

119 registrar that said violation has been disposed of in accordance with this chapter. The
120 certified receipt shall be printed in such form as the registrar of motor vehicles may approve.

121 Section 4. (a) Notwithstanding section 3 of this chapter, if the registered owner of a
122 motor vehicle in receipt of a notice of violation is a person or entity engaged in the business of
123 leasing or renting motor vehicles, and such motor vehicle was operating under a rental or lease
124 agreement at the time of a violation, then the provisions of this section shall be applicable, and
125 the registered owner shall not be liable for any unpaid fines; provided, however, that such owner
126 has complied with the procedures of this section.

127 (b) The police department shall give to the registered owner notice in writing of each
128 violation in which a motor vehicle owned by such owner is involved, as set forth in section 3.

129 (c) Within 45 days of the violation, the registered owner shall furnish to such department
130 or designee in writing the name and address of the lessee or renter of such motor vehicle at the
131 time of the violation; the lessee's or renter's driver's license number, state of issuance of such
132 driver's license and the lessee's or renter's date of birth.

133 (d) Such department or designee shall thereupon issue a notice of violation to such lessee
134 or renter in the form prescribed by section 3 and the lessee or renter shall be liable for the
135 violation.

136 (e) If such lessee or renter to whom a notice of violation has been issued either fails to
137 pay the fine in accordance with subsection (i) of section 3, or fails to receive a favorable
138 adjudication of said notice in accordance with subsection (j) of section 3, or subsection (k) of
139 section 3, the police department or designee shall notify the registrar of motor vehicles who shall
140 place the matter on record. Upon notification to the registrar of five or more of such notices

141 under this section, it shall be the duty of the registrar to suspend and not renew the license to
142 operate a motor vehicle of such lessee or renter or suspend the right to operate of a lessee or
143 renter not licensed in this commonwealth until after notification from the Salem police
144 department that all fines, taxes and penalties owed by such owner pursuant to either this chapter,
145 have been disposed of in accordance with this chapter. It shall be the duty of the police
146 department to notify the registrar forthwith that such case has been so disposed; provided,
147 however, that certified receipt of full and final payment from the police department shall also
148 serve as notice to the registrar that said violation has been disposed of in accordance this chapter.
149 The certified receipt shall be printed in such form as the registrar of motor vehicles may approve.

150 Section 5. No speed limit violation shall be issued unless the vehicle exceeds the speed
151 limit by at least ten miles per hour.

152 Section 6. (a) The city shall install a sign notifying the public that an automated road
153 safety camera system is in use at each location of said camera.

154 (b) The city shall make a public announcement and conduct a public awareness campaign
155 of use of automated road safety camera systems beginning at least 30 days before the
156 enforcement program is in use. The city may install but not activate automated road safety
157 camera systems during said time period.

158 Section 7. Verification that the automated road safety camera system and any appurtenant
159 traffic control signals are correctly calibrated shall be made by a professional engineer registered
160 in the commonwealth.

Section 8. (a) Photographs and other recorded evidence shall only be captured when a camera enforceable violation occurs. Photographs and other recorded evidence shall be destroyed within 48 hours of the final disposition of a violation.

(b) No photographs taken in conformance with this chapter shall be discoverable in any judicial or administrative proceeding other than a proceeding held pursuant to this chapter without a court order. No photograph taken in conformance with this chapter shall be admissible in any judicial or administrative proceeding other than in a proceeding to adjudicate liability for such violation of this chapter without a court order. A court shall order a release of a photograph taken in conformance with this chapter only where the photograph tends to establish or undermine a finding of a moving violation and the violation is material as to a finding of civil or criminal liability.

(c) Photographs and other personally identifying information collected by the city pursuant to this chapter are not public record.

(d) No automated road safety camera system shall be utilized in such a manner as to take a frontal view photograph of a motor vehicle.

Section 9. City shall establish a revolving or equivalent fund for all proceeds generated from this Act and such proceeds shall be used for traffic and safety enhancements and driver safety education.

Section 10. This act shall take effect as provided by law.